

Merits hearing transcript — volume 2

September 18, 2024 reconvening

The immigration court reconvenes at 9:00 a.m. with the same parties and interpreter. The judge confirms that volume one ended after A.R.M.'s testimony and that the exhibit receipt records P-7 as admitted. Neither party identifies a transcription error affecting that ruling.

Counsel agree that S.M. and Nadia Pel will testify through the initials-and-role protocol. Ilyan Varo will testify as a country-conditions expert subject to qualification. DHS will call one institutional-policy witness. The judge repeats that evidence is not accepted for the truth of an expert's assumed facts unless supported on an independent foundation.

S.M. sworn and relationship foundation

S.M. is sworn and identifies as A.R.M.'s older sibling. They lived in the same family residence in Orin Vale during May through August 2023. S.M. worked evening shifts and kept a household calendar for appointments and received messages. The calendar and communication log were prepared contemporaneously, though the declaration explaining them was signed later.

S.M. was not present during the asserted detention and cannot identify who held A.R.M. The witness can describe departure, return, observable condition, the clinic visit, the complaint preparation, and the July encounter. Counsel expressly limits questions to those subjects.

Observations after release

S.M. testifies that A.R.M. failed to return home on May 19 and 20. On May 21, A.R.M. arrived walking slowly, with dark wrist marks, a swollen right ankle, limited movement in the left shoulder, and discomfort while lowering into a chair. S.M. photographed the visible condition with a household device and logged the file controls. The source descriptions and margins are preserved in the family packet.

A.R.M. said municipal officers had demanded procurement copies. S.M. offers that statement only as part of the contemporaneous report and A.R.M.'s state, not as firsthand identification. The witness accompanied A.R.M. to the North Bell clinic, which registered the visit on May 21 at 14:20.

Complaint preparation and July encounter

S.M. helped organize the complaint submitted June 7. The packet named Unit Four and described the ledger demand. S.M. saw the neutral receipt and later the routing extract. No person from an external review desk contacted the household. The extract ended June 30 with “regional response pending” at RC - 4 and no interview.

On July 11, S.M. was beside A.R.M. when two people approached near the residence. One mentioned the copied book and Harbor League; the other warned that the household could be found after a move. S.M. could not identify either person by name or official role. The words and location, not an institutional conclusion, are the firsthand evidence.

Cross-examination of S.M.

DHS establishes that S.M. and A.R.M. are close, discussed the claim often, and reviewed the household log with counsel. S.M. did not see the detention and cannot date the wrist marks through technical image metadata alone. The device clock was compared with a message exchange rather than forensically examined.

S.M. agrees that the July speakers wore no visible government insignia and that Harbor League is an inference from their words. S.M. also agrees that no new in-person encounter occurred before A.R.M.'s August departure. These concessions are preserved alongside the consistent observations.

Redirect and completion of S.M. testimony

On redirect, S.M. explains that the log was started before any United States proceeding and contains ordinary family events as well as the disputed ones. Counsel displays entries before and after May to show the same format. S.M. made one spelling correction after comparing the clinic note, and the single-line correction remains visible.

The judge asks whether anyone suggested adding an officer's name. S.M. answers no and reiterates that no perpetrator was personally observed. The testimony concludes with the narrower proposition: A.R.M.'s absence, condition on return, later complaint activity, and July words were observed or recorded as described.

Nadia Pel qualifications and municipal role

Nadia Pel is sworn. She served as an Orin Vale municipal compliance officer from 2018 through December 2023. Her duties included reviewing procurement audit trails, authenticating routing tables, and referring complaints involving municipal personnel. She had no authority to decide criminal liability or order detention.

Pel recognizes the procurement-register format, approval-path codes, and Civic Integrity routing table in the family packet. Her authentication is based on work responsibilities and retained training copies, not on information supplied after leaving Kalyra. DHS reserves objections to the weight of copied municipal material.

Ledger versions and contact overlap

Pel compares the two register versions. They list six Harbor League invoices, NQL-3101 through NQL-3106, each below the 25,000-unit secondary-review threshold and totaling 137,400 units. The first version groups all six under maintenance cycle NQ-APR-A; the corrected version removes that grouping and labels each invoice an urgent standalone repair. Pel cannot say whether the change was an innocent correction or an effort to avoid review.

One vendor contact number matches a dispatch number Pel saw on a municipal framework list. A former Unit Four logistics supervisor was associated with that dispatch office. Pel explains the source of the match and concedes that association does not establish a command relationship or unlawful conduct.

Complaint-routing protocol

Pel explains the written Civic Integrity protocol. A complaint naming the receiving security unit should go to an external review desk. In practice, Orin Vale staff were instructed to mark procurement-security complaints with an operational-security code. The routing table sent that code to the Merrow regional command, where Unit Four had a liaison.

Pel objected internally that the practice defeated independent review. A supervisor responded that the regional command could decide whether outside referral was necessary. Pel retained a blank routing table and training memorandum; neither document names A.R.M.

Routing of A.R.M.'s complaint

Pel recognizes complaint OCI - 23 - 441, accepted June 7 under initial route IC - 2. The June 9 entry links it to CIV - 23 - 184 through ARM - RX - 14; the June 10 entry changes destination to RC - 4, Unit Four regional command; and the June 30 status is “regional response pending,” with no interview. Pel did not process this specific complaint because she had already been moved from intake duties, but she can interpret the codes through her prior work.

The judge admits the routing explanation for code meaning while reserving the inference about who read the complaint. Pel cannot testify that a particular Unit Four officer received it. She can testify that the institutional destination was the command containing that liaison.

Cross-examination of Pel on safeguards

DHS elicits that Kalyrian law prohibits retaliation and that an inspector hotline exists. Pel used the hotline once on an unrelated procurement matter and received an acknowledgment. She cannot say that every regional referral is ignored or that the external desk lacks authority.

Pel also acknowledges leaving municipal employment after a management dispute and receiving a fixed fee for testimony preparation. The retained training copies omit full personnel names. DHS suggests that the operational-security code may protect sensitive infrastructure. Pel agrees that it has a legitimate purpose but maintains that it should not return a complaint to a named unit without outside screening.

Redirect of Pel

Counsel asks whether a formal safeguard answers what occurred in this file. Pel says the hotline and external desk show available structures, while the visible codes show that this complaint used a different path. The distinction is between legal authority and actual routing, not a claim that all remedies are useless.

Pel confirms that her testimony does not prove A.R.M.'s detention. It authenticates register and routing formats, explains a contact overlap, and identifies the destination and pending-status meaning of the complaint extract. The judge excuses Pel after DHS declines further questions.

Qualification of Ilyan Varo

Varo is sworn and summarizes experience studying Kalyrian procurement, security, and complaint systems. Counsel offers the expert in institutional structure and documented practice, not medicine, credibility, or legal standards. DHS questions source selection, coded interviews, and prior criticism of translated press reliance.

The judge finds Varo qualified within the stated scope. The qualification does not guarantee the accuracy of each source. Varo must identify assumptions, contrary material, and the difference between capability and a predicted event. The twenty-page report and source register remain in evidence under the prior exhibit receipt, with Varo's testimony subject to those limits.

Varo's method explained

Varo describes the hierarchy of directives, authenticated registers, coded interviews, and corroborated summaries. Formal rules are given full weight as evidence of lawful structure. Practice claims require a document pattern or more than one independent account. Missing data are not silently treated as adverse.

The expert reviewed A.R.M.'s materials only to map asserted pathways. Varo did not assume a detention occurred, did not interview A.R.M., and did not assign a probability. The source cutoff precedes the agency decision, and no material arising after that cutoff was considered.

Unit Four capability and practice

Varo explains Unit Four's formal infrastructure-fraud mandate and the limits in Directive 18. Terminal audits show practical access to employment, travel, and household-link fields through a regional liaison. Some queries lack an identifiable registered case. Former employees described questioning at an unlisted compound with features similar to A.R.M.'s account.

The sources establish capability and a practice pattern, not that A.R.M. has a current flag or that every described officer acted unlawfully. Varo considers lawful oversight rules contrary evidence. The judge asks that those limits appear in any finding based on the report.

Harbor League and registry links

Varo identifies overlap between Harbor League vendor contacts, a dispatch office, and a former Unit Four logistics supervisor. Reports of messengers knowing complaint details are consistent but vary on uniforms. Registry rules permit return notifications and household queries through a regional liaison, though a proper query requires a case and approval.

The asserted chain therefore has connected nodes: contractor information, registry identification, and official detention capacity. Varo cautions that overlap is not proof of a single conspiracy. The same encounter should not be multiplied simply because several nodes contribute.

Complaint system and protective response

The forty-entry municipal sample shows most complaints naming security personnel routed to a regional command rather than an external desk. None of those regional files records a complainant interview; several close on the named unit's response. The sample is not nationally representative and was selected because data were available.

Varo concludes only that formal independent review did not consistently operate in the sampled files. A.R.M.'s routing code fits that pattern. Whether senior officials had actual knowledge of the specific complaint is not established. Institutional receipt and response remain distinct from individual mental state.

Formal prohibitions and enforcement gap

DHS asks Varo to describe safeguards. The expert confirms national prohibitions, an inspector hotline, discipline tables, and lawful relocation. Those measures may reduce risk. The discipline tables, however, combine minor and serious violations and disclose few outside referrals from the hotline. A revised circular had been announced but implementation records were unavailable.

Varo does not equate a low referral count with approval of abuse. The narrower observation is that formal rules cannot reveal whether a complaint routed to the implicated command received an independent response. Both the rules and the operational evidence belong in the assessment.

Cross-examination on sample limits

DHS establishes that interview identities are coded, the complaint sample is small, and some press summaries rely on translation. Varo agrees. No source states that A.R.M. personally appears on a watch list. No authenticated order directs harm to procurement clerks. Several former clerks experienced only requests to return documents.

Varo also agrees that lawful departure is contrary evidence and that a year without direct contact may matter. The report does not convert uncertainty into certainty. It identifies a possible chain whose weight depends on whether the underlying personal events and institutional links are credited.

Cross-examination on relocation

DHS asks whether A.R.M. could live outside Merrow Province. Varo confirms that no internal passport blocks movement and that short-term cash lodging exists. A person avoiding registered work and services may reduce visibility. Varo has no evidence of continuous national surveillance by Unit Four.

The expert adds that entry data, formal employment, and household links use national or provincial systems accessible through the liaison channel. Relocation may weaken local contact but does not necessarily sever the registry pathway. The judge reserves whether those practical constraints make relocation relevant under the governing CAT inquiry.

Redirect on aggregation and limits

Counsel asks Varo to distinguish adding probabilities from evaluating a connected chain. Varo says independent pathways may contribute separately, while overlapping steps should be assessed once. Registry notice, contractor leads, and Unit Four action are parts of one possible sequence. A separate household threat may be independent evidence but may also share actors.

Varo repeats the limits: no personal flag, no universal contractor command, incomplete discipline data, and no legal conclusion. The report's contribution is an institutional map against which the judge can evaluate all admitted evidence rather than treating each feared actor in isolation.

DHS institutional witness

DHS calls Tomas Erel, a policy analyst familiar with published Kalyrian safeguards. Erel describes the anti-torture statute, inspector hotline, registered detention rules, external review desk, and examples of officer discipline. Erel has not worked in Orin Vale and did not review the underlying complaint file beyond the translated extract.

On cross-examination, Erel agrees that a complaint naming Unit Four should ordinarily receive outside screening and that the visible code went to the regional command. Erel cannot identify an independent interview or explain the missing one. The testimony supports formal protection while leaving the file-specific routing dispute intact.

Evidentiary rulings and closed record

The judge confirms admission of P-1 through P-9, including the P-4 messages and P-5 complaint-routing materials. The agency record also contains the two transcript volumes, exhibit receipt, P-7 declaration, expert and medical reports, translation packet, family materials, and policy evidence. Weight objections are preserved. The judge excludes no part of P-7 and confirms again that it was lodged before the hearing and admitted without authenticity or timeliness objection.

The parties confirm that the evidentiary record is closed subject to written corrections of the transcript. No material outside the then-existing submitted exhibits is offered. The clerk will preserve the exhibit receipt as part of the agency proceeding.

Oral summaries and submission

A.R.M. argues that prior detention, complaint routing, Harbor League access, and registry capacity must be considered together and that formal prohibitions do not resolve file-specific response. DHS argues that credibility gaps, lawful departure, time, relocation, and legal safeguards prevent the burden from being met. Both sides cite admitted exhibits and acknowledge the absence of a numerical expert probability.

The judge takes the matter under advisement at 4:42 p.m. and states that a decision will address each feared actor, official response, and all relevant conditions evidence. Appeal rights will run from service of the written decision. The hearing ends without an oral disposition that day.